

Sales Commission Agreement

This Sales Commission Agreement ("Agreement") is made as of 10/1/2024, by and between Second Nature Tree, with a principal place of business at 663 Sprout Brook Rd. Putnam Valley, NY 10579 (Here on referred to as "Company"), and Christian Owen, with a principal address at 12 Lovell St. Somers, NY 10589 (Here on referred to as "Salesman").

1. Commission Structure

1.1 Sales Commission: The Company agrees to pay the Salesman a commission of 15% on all sales made by the Salesman.

1.2 Referral Commission: The Company agrees to pay the Salesman a commission of 5% for referrals made by the Salesman, provided that another salesperson conducts the site visit. A 10% commission will be applied to sales of projects for the primary commercial clients onboarded with Company in this year 2024 by Salesman. Primary clients: Empire Solar Solutions, LLC, SunRun Installation Services, Inc, NYSDDSO, ASG, The Tree Army, Inc and any commercial clients that are onboarded before the end of 2024 by Salesman.

1.3 Emergency Jobs: The full 15% commission rate applies to all emergency jobs and any invoices generated after work completion.

2. Scope of Agreement

2.1 Bid Requirements: The 5% commission applies exclusively to work that necessitates an in-person bid, with another salesperson conducting the site visit. This excludes the primary commercial clients listed above.

3. Sale of Equipment

3.1 Truck Sale: Salesman agrees to sell a 2011 Ford 750 Forestry Truck, VIN# 1FT7W2BTXKEF15559 (Here on referred to as Bucket Truck) to Company for a total purchase price of \$91,802.88; the remaining payments owed to the financier.

3.2 Ownership: The full ownership of Bucket Truck shall be transferred to Second Nature Tree LLC. By signing this agreement, Salesman agrees to produce a bill of sale for Bucket Truck and sign title and bill of sale over to Company.

3.3 Use: Company agrees to pay lien holder, Bluebridge Financial, the exact cost of monthly payments and insurance for Bucket Truck, as well as cover maintenance and operating costs until the finalization of sale and transfer. Company assumes responsibility of Bucket Truck and the safe storage and operation of the asset.

3.4 Gear/Tool: Company will acquire all saws and gear currently stored at the former yard for CeeTree, LLC and agree to pay Salesman a total amount of \$2500, paid out in no more than 3 payments by the end of calendar year 2024.

4. Term

4.1 Validity: This Agreement shall be valid until October 1, 2027, and will automatically continue on a month-to-month basis thereafter unless terminated by either party with written notice.

5. Payment Terms

5.1 Revenue Collection: By January 1, 2025, all revenue will be paid to Second Nature Tree. All clients shall be added to a database, and contracts will be maintained by the Company. Salesman is responsible for facilitating the onboarding between Company and commercial clientele and will act as a company representative in dealings with clientele.

5.2 Commission Payments: Commissions are guaranteed to be paid monthly but will most likely be paid out weekly to the Salesperson. Payments will be processed through Company; the Salesman will be classified as a 1099 subcontractor of the Company and will be responsible for his own tax obligations.

6. Liability

6.1 Indemnification: In acquiring possession of CeeTree's clients, select equipment, gear, staff, and other assets, the Company assumes no liability for any past violations, lawsuits, or any legal or financial burdens incurred by CeeTree or Christian Owen prior to the effective date of this Agreement.

7. Miscellaneous

7.1 Governing Law: This Agreement shall be governed by and construed in accordance with the laws of the State of New York.

7.2 Entire Agreement: This Agreement constitutes the entire understanding between the parties regarding the subject matter herein and supersedes all prior agreements and understandings.

7.3 Amendments: Any amendments or modifications to this Agreement must be in writing and signed by both parties.

IN WITNESS WHEREOF, the parties hereto have executed this Sales Commission Agreement as of the date first above written.

Second Nature Tree, Sales
Agreement Page 4

Second Nature Tree

Print: _____

Sign: _____

Title: _____

Date: _____

Sworn to Before Me

This_____ day of October, 2024

Notary Public

Christian Owen

Print: _____

Sign: _____

Title: _____

Date:_____

Sworn to Before Me

This_____ day of October, 2024

Notary Public